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9 Mandarin Law Group, LLP California Debt Collector License Number 10795-99.

10 Attorneys for Plaintiff: LVNV Funding LLC

Electronically FILED by
Superior Court of California,
County of Los Angeles
1/08/2024 11:45 PM
David W. Slayton,
Executive Officer/Clerk of Court,
By H. Martinez, Deputy Clerk

7 **SUPERIOR COURT OF THE STATE OF CALIFORNIA**
8 **IN AND FOR THE COUNTY OF LOS ANGELES - LIMITED**

9 LVNV Funding LLC,
10 Plaintiff,

11 vs.

12 Adrian A Alcala, an individual;

13 and DOES 1 through 10 inclusive.
14 Defendant.

Case No. 24CHLC00669

COMPLAINT FOR:

1. ACCOUNT STATED
2. OPEN BOOK ACCOUNT

DEMAND: \$3,008.91

15 Plaintiff alleges:

16 **FACTS COMMON TO ALL CAUSES OF ACTION**

17 1.Plaintiff is and at all times herein mentioned, LVNV Funding LLC, and successor in
18 interest to original creditor, Citibank, N.A..

19 2.Plaintiff is a debt buyer, and is the sole owner of the debt at issue. Plaintiff's California
20 Debt Collector License Number 10888-04.

21 3.The charge-off creditor at the time of charge-off is Citibank, N.A., 5800 South Corporate
22 Place Sioux Falls, SD 57108, and the account number associated with this debt is
23 XXXXXXXXXXXXX7786.

24 4.The subject credit account has been purchased by the following entities after charge-off:
25 Resurgent Acquisitions LLC P.O. Box 10466 Greenville, SC 29603. The subject credit account
26 was transferred by Resurgent Acquisitions LLC to Plaintiff LVNV Funding LLC, who maintains
27 an address at C/O Resurgent Capital Services LP 55 Beattie Place, Suite 110, Greenville SC 29601.

28 5.Plaintiff is informed and believes that Defendant are individuals who currently reside

1 within the jurisdictional boundaries of the above entitled Court. Therefore, this Court is the proper
2 Court for trial of this action.

3 6.The name and last known address of the debtor as they appeared in the charge-off
4 creditor's records prior to the sale of the debt is Adrian A Alcala, 15814 REX CT , SANTA
5 CLARITA, CA 91387-0000.

6 7.Plaintiff is unaware of the true names or capacities, whether individual, corporate,
7 associate or otherwise of the Defendant sued herein as DOES 1 through 10 inclusive, and therefore,
8 sued the Defendant by such fictitious names. Plaintiff will amend this Complaint to show their true
9 names and capacities once ascertained.

10 8.Plaintiff believes and at all times mentioned herein, each of the Defendant was, and is,
11 the agent, servant and employee, employer of each of the other Defendant, and also acted in the
12 capacity of and as agent of the other Defendant. Plaintiff also believes that the individual
13 Defendant, and each of them, are jointly and severally liable that the actions described herein
14 were taken as actions for the benefit of the Defendant's separate and/or community property.

15 9.Plaintiff believes that, for value received, Defendant and each of them, executed and
16 delivered a credit card application to the original creditor, Citibank, N.A. or made such application
17 over the telephone or Internet. Pursuant to the aforementioned application, Citibank, N.A. provided
18 Defendant with a credit account, and granted use privileges on the same, account number
19 XXXXXXXXXXXX7786 (hereinafter "Account").

20 10.Prior to the commencement of this action, the Account was assigned for value to the
21 Plaintiff and Plaintiff is its current holder.

22 11.Defendant agreed to repay Citibank, N.A. and any successors in interest, for any charges
23 on the Account including, but not limited to, charges for purchase of goods and service and/or cash
24 advances and balance.

25 12.Defendant used the Account to make purchases and/or to take cash advances and/or to
26 make balance transfers. Each time the Defendant used the Account to purchase goods and services
27
28

1 and/or take cash advances and/or make balance transfers, Defendant reaffirmed their agreement to
2 repay Citibank, N.A. and its successors in interest for the amount of the purchase and/or cash
3 advances and/or balance transfers.

4 13.Monthly statements were sent to Defendant which itemized all payments made and
5 charges due on the Account.

6 14.The date of last payment on the subject account was on April 24, 2020.

7 15.Within the last four years, the Defendant failed to make payments as agreed on the
8 Account. Defendant has failed, refused and neglected to pay amounts due on the Account.

9 16.The debt balance at charge-off was \$3,008.91, and upon information and belief there is
10 \$0.00 in post charge off fees and \$0.00 in post charge off interest.

11 17.Subsequent to charge-off, and after applying any and all applicable payments and
12 credits, the Defendant owes Plaintiff \$3,008.91.

13 18.Although demand has been made upon said Defendant to pay said amount, no part has
14 been paid, and it is now due and owing.

15 19.Upon information and belief, Citibank, N.A. and successors in interest including
16 Plaintiff have duly performed all promises, conditions and agreements herein.

17 20.Plaintiff has complied with California Civil Code Section 1788.52.

18 21.Plaintiff has attached hereto as Exhibit A and incorporated herein by reference a copy
19 of Billing Statement provided to the Defendant while the account was active, demonstrating that
20 the debt was incurred by the Defendant.

21 22.Plaintiff has attached hereto as Exhibit B and incorporated herein by reference a copy
22 of the Final Billing Statement and/or Transaction History.

23 23.Upon opening the Account with Citibank, N.A., the Defendant(s) agree to reimburse
24 Citibank, N.A., and hence Plaintiff as successor in interest for the costs related to the collection of
25 amounts owing on the Account. Plaintiff has been required to retain Mandarich Law Group, LLP
26
27
28

1 to pursue collection of the amount due hereunder.

2
3 **FIRST CAUSE OF ACTION**

4 **(Account Stated)**

5 24.Plaintiff refers to and incorporates paragraphs 1 through 23.

6 25.Within the past 4 years, an account was stated in writing in which it was agreed that
7 Defendant were indebted in the amount previously referenced herein. Although demand has been
8 made upon Defendant, said amount of \$3,008.91 has not been paid, and it is now due, owing and
9 unpaid from Defendant to Plaintiff, as successor in interest.
10

11
12 **SECOND CAUSE OF ACTION**

13 **(Open Book Account)**

14 26.Plaintiff refers to and incorporates paragraphs 1 through 25.

15 27.Within the past 4 years, Defendant and each of them became indebted in the amount of
16 the previously mentioned herein for a balance due on a book account for goods sold and delivered
17 and/or services rendered by Citibank, N.A.. Although demand has been made upon Defendant,
18 said amount of \$3,008.91 has not been paid, and it is now due, owing and unpaid including
19 attorney's fees from Defendant to Plaintiff as successor in interest.
20

1
2 WHEREFORE, Plaintiff prays for judgment against the Defendant as follows:

- 3
4 1. For the damages and money in the sum of \$3,008.91,
5 2. For reasonable attorneys fees pursuant to statute;
6 3. For costs of suit incurred; and
7 4. For such other and further relief as the Court deems just and proper.
8
9 5. Plaintiff remits all damages in excess of the jurisdictional amount of this Court.

10
11 Dated: 12/24/2023

By: **MANDARICH LAW GROUP, LLP**

12
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14 

15 [X] Martin Weingarten, Esq.
16 *Attorneys for Plaintiff*
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EXHIBIT A

Citi PremierPass®/Expedia® Card – Elite Level



ADRIAN A ALCALA

Member Since 2012 Account number ending in: 7786

Billing Period: 11/29/19-12/27/19

www.citicards.com

Customer Service 1-866-458-4271

TTY-hearing-impaired services only 1-800-325-2865
BOX 6500 SIOUX FALLS, SD 57117

DECEMBER STATEMENT

Minimum payment due: **\$302.66**
New balance as of 12/27/19: **\$2,932.66**
Payment due date: **01/24/20**

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$39 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	4 year(s)	\$3,602

For information about credit counseling services, call 1-877-337-8187.

Your account is past due \$0.00 and overlimit \$232.66. You're in a payment program; please pay at least the minimum payment due or the amount listed in the terms and agreement letter sent to you at time of enrollment.

Account Summary

Previous balance	\$2,979.22
Payments	-\$70.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$23.44
New balance	\$2,932.66

Credit Limit

Revolving Credit limit **\$2,700**
Includes \$600 cash advance limit

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To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due **\$302.66**
New balance **\$2,932.66**
Payment due date **01/24/20**

Amount enclosed:

Account number ending in 7786

000000 PW 44 A 0

ADRIAN A ALCALA
15814 REX CT
SANTA CLARITA CA 91387-1410

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

ADRIAN A ALCALA

TTY-hearing-impaired services only 1-800-325-2865

Account Summary

Trans. date	Post date	Description	Amount
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Payments, Credits and Adjustments

	12/24	PAYMENT THANK YOU	-\$70.00
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Fees charged

Total fees charged in this billing period	\$0.00
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Interest charged

Date	Description	Amount
12/27	INTEREST CHARGED TO STANDARD PURCH	\$23.44

Total interest charged in this billing period	\$23.44
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2019 totals year-to-date

Total fees charged in 2019	\$254.00
Total interest charged in 2019	\$557.24

Interest charge calculation

Days in billing cycle: 29

Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	9.90%	\$2,980.90 (D)	\$23.44
ADVANCES			
Standard Adv	9.90%	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please be sure to pay on time. If you submit your payment by mail, we suggest you mail it no later than 01/17/2020 to allow enough time for regular mail to reach us.

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EXHIBIT B

Citi PremierPass®/Expedia® Card – Elite Level



ADRIAN A ALCALA

Member Since 2012 Account number ending in: 7786

Billing Period: 05/29/20-06/26/20

www.citicards.com

Customer Service 1-866-458-4271

TTY-hearing-impaired services only 1-800-325-2865

BOX 6500 SIOUX FALLS, SD 57117

JUNE STATEMENT

Minimum payment due:	\$3,008.91
New balance as of 06/26/20:	\$3,008.91
Payment due date:	06/26/20

See the last page of this statement for important information about how to avoid paying interest on purchases.

Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee of up to \$39 and your APRs may be increased up to the Penalty APR of 29.99%.

Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance. For example:

If you make no additional charges using this card and each month you pay...	You will pay off the balance shown on this statement in about...	And you will end up paying an estimated total of...
Only the minimum payment	1 month(s)	\$3,009

For information about credit counseling services, call 1-877-337-8188.

Your account is past due \$350.00 and overlimit \$308.91. You're in a payment program; please pay at least the minimum payment due or the amount listed in the terms and agreement letter sent to you at time of enrollment.

Account Summary

Previous balance	\$2,985.34
Payments	-\$0.00
Credits	-\$0.00
Purchases	+\$0.00
Cash advances	+\$0.00
Fees	+\$0.00
Interest	+\$23.57
New balance	\$3,008.91

Credit Limit

Revolving Credit limit	\$2,700
Includes \$600 cash advance limit	

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To download:
Text 'App15' to MyCiti (692484)
or go to your device's app store.
Or visit www.citicards.com

Minimum payment due	\$3,008.91
New balance	\$3,008.91
Payment due date	06/26/20

Amount enclosed:

Account number ending in 7786

000000 PW 44 A 0

ADRIAN A ALCALA
15814 REX CT
SANTA CLARITA CA 91387-1410

CITI CARDS
PO BOX 78045
Phoenix, AZ 85062-8045

ADRIAN A ALCALA

TTY-hearing-impaired services only 1-800-325-2865

Account Summary

Trans. date	Post date	Description	Amount
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Fees charged

Total fees charged in this billing period	\$0.00
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Interest charged

Date	Description	Amount
06/26	INTEREST CHARGED TO STANDARD PURCH	\$23.57
Total interest charged in this billing period		\$23.57

2020 totals year-to-date

Total fees charged in 2020	\$0.00
Total interest charged in 2020	\$146.25

Interest charge calculation

Days in billing cycle: 29

Your **Annual Percentage Rate (APR)** is the annual interest rate on your account.

Balance type	Annual percentage rate (APR)	Balance subject to interest rate	Interest charge
PURCHASES			
Standard Purch	9.90%	\$2,996.70 (D)	\$23.57
ADVANCES			
Standard Adv	9.90%	\$0.00 (D)	\$0.00

Your Annual Percentage Rate (APR) is the annual interest rate on your account. APRs followed by (V) may vary. Balances followed by (D) are determined by the daily balance method (including current transactions).

Account messages

Please note that if we received your pay by phone or online payment between 5 p.m. ET and midnight ET on the last day of your billing period, your payment will not be reflected until your next statement.

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